

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001118

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MARIO ZOGBI

and

RESPONDENT: DABHNE PALACIOS
CURI

NATURE OF PROCEEDINGS: 1) REVIEW HEARING – CHILD CUSTODY/VISITATION –
RECEIPT OF FCS REPORT 2) MOTION – CHILD SUPPORT

RULING

Procedural History

On January 31, 2025, a three-year restraining order was issued with Mario Zogbi (Father) as the restrained party and Dabhne Palacios Curi (Mother) and the children Jonathan Zogbi (DOB 8/11/15) and Jimena Zogbi (8/15/17) as the protected parties. Father has not seen the children since June 2024.

A subsequent order from this Court from February 17, 2026, (following a hearing on 11/7/25), provides that Mother maintains sole legal and physical custody.

Under the February 2026 Order, the children are not mandated to visit with Father for supervised visits if they do not wish to do so. Further, Father was directed to complete all aspects of his mental health diversion including being medication compliant and is complete the 52-week batterers' treatment course Streets 2 School.

This Court indicated that professionally supervised visits for Father may again be considered in the future after Father successfully completes (1) his mental health diversion, (2) his batterers' treatment course, and (3) upon a showing that Father has genuinely taken responsibility for his violence and has been rehabilitated. Per a stipulation and order from March 2, 2026, the parties were rereferred to Marin Family Court Services with a review hearing set for May 22, 2026. (The hearing was subsequently continued to June 11, 2026.)

Father's Record of Compliance with this Court's Order

Father was asked to submit proof of completion of his domestic violence and parenting classes to FCS and to provide a letter from his therapist as well as a letter documenting the status of his mental health diversion.

The FCS report confirms that Father submitted certificates of completion for an eight-hour parenting class (completed 8/18/25) as well as a 52-week batterers' treatment class (Streets 2 Schools) (completed 3/3/26). Further, Father has submitted documentation from mental health professionals showing his continuing engagement in therapy and attesting to symptom improvement and compliance with medication schedule.

On June 4, 2026, Father successfully completed mental health diversion, was found to be in full compliance with the terms of diversion, and the case, *People v. Mario Zogbi* (CR0002883), was dismissed.

FCS Recommendations and the Parties' Statements of Agreement/Disagreement

FCS issued its report dated May 6, 2026. FCS provided the following recommendations: All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Father shall have either professionally supervised visits through Rally once every other week or therapeutically supervised visits once every other week. The visits shall be one hour in length.
2. Father shall not make statements to the children denying or minimizing his role in the domestic violence incident that led to him being ordered to mental health diversion through the criminal court.
3. The children shall continue in therapy until no longer clinically indicated.

Father filed a statement of disagreement on May 14, 2026, stating that he seeks both therapeutically supervised visits and professionally supervised visits.

Mother also filed a statement of disagreement on May 14, 2026, stating her opposition to therapeutic or supervised visits at this time. In support of her position, Mother submitted a letter from Meghan Kehoe of the Center for Domestic Peace. Mother urges that the children are making progress and achieving a degree of stability that is still precarious and introducing required visits with Father at this time would be disruptive.

Court's Adoption of FCS Recommendations with Modifications

The Court has reviewed the submissions of the parties, the FCS report, the filings in this action and the parallel criminal court proceedings. The Court finds good cause and that it is in the best interest of the children to adopt the recommendations of FCS as modified as follows:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Father shall have therapeutically supervised visits once every other week. The visits shall be one hour in length.
2. Father shall not make statements to the children denying or minimizing his role in the domestic violence incident that led to him being ordered to mental health diversion through the criminal court.
3. The children shall continue in therapy until no longer clinically indicated.

Counsel for the parties are directed to request recommendations for therapeutic supervisors from FCS. The parties are to return to this Court December 15, 2026, at 9:00 AM for a review hearing.

Counsel for Father to prepare the findings and order after hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL002319

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROSA MARIA AGUILAR
ORTEGA

and

RESPONDENT: VICTORIO GARCIA
TORRES

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Rosa Maria Aguilar Ortega (Wife) filed a request for order for a change in spousal support on April 16, 2026. Wife states that she suffered a heart attack on July 11, 2025, that affected her ability to work and caused her to incur substantial debts associated with her medical care.

Victorio Garcia Torres (Husband) filed a responsive declaration dated May 8, 2026, opposing the request for order, stating that Wife had failed to comply with the local rules to file an Income and Expense Declaration in support of her request for spousal support.

The Court will continue this matter and directs Wife to comply with Local Rule 7.13. This matter will be continued to _____.

As authorized by CRC Rule 5.125, the Court shall prepare the findings and order after hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.